

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christopher Anderson	Team: Squad #02	CCRB Case #: 201700793	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 01/25/2017 1:00 AM	Location of Incident: East 194th Street and Marion Avenue	18 Mo. SOL 7/25/2018	Precinct: 52		
Date/Time CV Reported Wed, 01/25/2017 12:39 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 01/31/2017 10:51 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM John Smyth	09118	949945	052 PCT
2. POM Brian Doherty	12054	954743	052 PCT
3. POM Joseph Walsh	20272	940848	052 PCT
4. An officer			052 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Brian Doherty	Abuse: Police Officer Brian Doherty stopped § 87(2)(b)	A . Exonerated
B . POM Brian Doherty	Discourtesy: Police Officer Brian Doherty acted discourteously toward § 87(2)(b)	B . Unsubstantiated
C . POM Brian Doherty	Discourtesy: Police Officer Brian Doherty spoke discourteously to § 87(2)(b)	C . Unsubstantiated
D . POM John Smyth	Discourtesy: Police Officer John Smyth spoke discourteously to § 87(2)(b)	D . Substantiated
E . POM John Smyth	Abuse: Police Officer John Smyth threatened § 87(2)(b) with the use of force.	E . Substantiated
F . POM John Smyth	Force: Police Officer John Smyth used physical force against § 87(2)(b)	F . Exonerated
G . POM John Smyth	Abuse: Police Officer John Smyth frisked § 87(2)(b)	G . Substantiated
H . An officer	Abuse: An officer stopped § 87(2)(b)	H . Alleged Victim Uncooperative
I . An officer	Abuse: An officer frisked § 87(2)(b)	I . Alleged Victim Uncooperative
J . An officer	Abuse: An officer searched § 87(2)(b)	J . Alleged Victim Uncooperative
K . POM Brian Doherty	Abuse: Police Officer Brian Doherty searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	K . Substantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On January 25, 2017, § 87(2)(b) filed this complaint with the IAB Command Center, and it was received at the CCRB on January 31, 2017.

On January 25, 2017, at approximately 1:00 a.m., § 87(2)(b) drove on Marion Avenue between East 195th Street and East 194th Street in the Bronx. § 87(2)(b) parked his vehicle next to a fire hydrant in front of a barber shop near the corner of East 194th Street and Marion Avenue and met his friend, § 87(2)(b) outside it. An unmarked NYPD vehicle approached, drove away, and returned approximately five minutes later, when § 87(2)(b) and § 87(2)(b) were inside § 87(2)(b)'s vehicle in the same location.

Police Officer Brian Doherty of the 52nd Precinct exited the unmarked vehicle, approached § 87(2)(b)'s vehicle, and asked § 87(2)(b) for identification and documents related to the vehicle (**Allegation A**). When § 87(2)(b) provided his learner permit and refused to provide additional documents, Police Officer Doherty allegedly threw § 87(2)(b)'s identification onto him (**Allegation B**) and allegedly said, "I'm not dealing with this shit" (**Allegation C**). Police Officer John Smyth of the 52nd Precinct walked to the driver door of § 87(2)(b)'s vehicle, reached inside the vehicle's driver door, unlocked it, opened it, and grabbed § 87(2)(b)'s arm. Police Officer Smyth said, "Reach, and I'll fucking lay you," (**Allegations D and E**) and pulled § 87(2)(b) from his vehicle (**Allegation F**). Police Officer Smyth frisked § 87(2)(b) (**Allegation G**) while one of the other officers allegedly stopped, frisked, and searched § 87(2)(b) (**Allegations H, I, and J**). Police Officer Doherty searched § 87(2)(b)'s vehicle (**Allegation K**). § 87(4-b) § 87(2)(g)

Neither § 87(2)(b) nor § 87(2)(b) was arrested or issued a summons as a result of this incident.

Video footage related to this incident was recorded by a surveillance camera installed outside a nearby business (Board Review 01 and 02) as well as by a bystander, who only provided his name to the CCRB as § 87(2)(b) (Board Review 03 and 04), and by § 87(2)(b) (Board Review 05 and 06), who recorded footage on their personal phones. This footage was provided to IAB and subsequently obtained by the CCRB. The original video files can be found in IA numbers 109 through 114, 116 through 118, and 121, respectively. Clips of the relevant portions are embedded below.



Snaglt1.mp4



Snaglt2.mp4



Snaglt3.mp4



Snaglt4.mp4

Mediation, Civil and Criminal Histories

- Mediation was offered to and rejected by § 87(2)(b) § 87(2)(b).
- As of April 10, 2017, neither § 87(2)(b) nor § 87(2)(b) has filed a Notice of Claim with the City of New York regarding this incident (Board Review 07).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s fifth CCRB complaint (Board Review 10). § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b).
- Police Officer Doherty has been a member of the NYPD for three years and has had 11 prior allegations against him in six cases, including three substantiated allegations in two cases § 87(4-b) § 87(2)(g). In CCRB case number 201510362, two stop allegations were substantiated, with the Board recommending Formalized Training and the NYPD disposition pending. In CCRB case 201605007, one stop allegation was substantiated, with the Board recommending Command Discipline A and the NYPD disposition pending. § 87(2)(g)
§ 87(2)(g).
- Police Officer Smyth has been a member of the NYPD for five years and has had 12 prior allegations against him in six cases, including § 87(4-b) § 87(2)(g)
§ 87(2)(g) no substantiated allegations. § 87(2)(g)
§ 87(2)(g).
- Police Officer Walsh has been a member of the NYPD for 11 years and has had 19 allegations against him in eight cases, none of which were substantiated. § 87(2)(g)
§ 87(2)(g).

Potential Issues

§ 87(2)(b) provided neither a telephone statement nor a sworn statement to the CCRB. § 87(2)(b) failed to appear for a scheduled CCRB interview appointment and did not respond to subsequent contact attempts.

Findings and Recommendations

Explanation of Subject Officer Identification

- Police Officer Doherty stated that he was driver of his vehicle and made the decision to stop his vehicle, approach § 87(2)(b)'s vehicle, and proceed to request his documents. § 87(2)(g)
§ 87(2)(g).
- Video in SnagIt2.mp4 above depicts an officer walking to the driver side of § 87(2)(b)'s vehicle, followed by an officer noticeably taller than and wearing noticeably lighter colored clothing than him. § 87(2)(b) described Police Officer Doherty and Police Officer Walsh as wearing blue sweatshirts and Police Officer Smyth as wearing a grey sweatshirt. Police Officer Smyth's pedigree information indicates that he is approximately six inches taller than Police Officer Doherty. § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g).
- § 87(2)(b) alleged that Police Officer Doherty stopped, frisked, and searched § 87(2)(b) by instructing him to exit § 87(2)(b)'s vehicle, patting the exterior of his jacket and pants, and inserting a hand into his interior jacket pocket. § 87(2)(b) stated to IAB that an officer, who he did not identify, patted the exterior of his clothing and did not insert a hand into his pockets. Police Officer Doherty acknowledged that an officer

frisked § 87(2)(b) but did not recall performing this action and did not recall which officer did so. Police Officer Smyth did not recall whether any officer patted § 87(2)(b)'s clothing or interact with him whatsoever. Police Officer Walsh stated that he may have “inadvertently” frisked § 87(2)(b) in order to “check for bulges.” § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation not pleaded

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation A –Abuse of Authority: Police Officer Brian Doherty stopped § 87(2)(b)

On January 25, 2017, § 87(2)(b) was interviewed by IAB (Board Review 18). On January 26, 2017, § 87(2)(b) was interviewed by IAB (Board Review 21). On February 8, 2017, § 87(2)(b) provided a telephone statement to the CCRB (Board Review 11). On March 1, 2017, § 87(2)(b) was interviewed at the CCRB. On March 13, 2017, § 87(2)(b) provided a telephone statement to the CCRB (Board Review 14). Police Officer Smyth was interviewed at the CCRB on March 23, 2017. Both Police Officer Doherty and Police Officer Walsh were interviewed at the CCRB on March 30, 2017.

It is undisputed that § 87(2)(b) parked his vehicle next to a fire hydrant and exited. § 87(2)(b) stated that when he first saw the officers’ vehicle, he and § 87(2)(b) were standing outside § 87(2)(b)'s vehicle. § 87(2)(b) and § 87(2)(b) entered the vehicle in the time between the officers first passing § 87(2)(b)'s vehicle and when they approached it.

No person shall stop, stand or park a vehicle within fifteen feet of a fire hydrant except when such vehicle is attended by a licensed operator or chauffeur who is seated in the front seat and who can immediately move such vehicle in case of emergency. New York State Vehicle and Traffic Law Article 32, Section 1202(a)3b (Board Review 12).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation A** be **exonerated**.

Allegation B –Discourtesy: Police Officer Brian Doherty acted discourteously toward § 87(2)(b)

§ 87(2)(b)

Allegation C –Discourtesy: Police Officer Brian Doherty spoke discourteously to § 87(2)(b)

As per § 87(2)(b) after he provided his learner permit to Police Officer Doherty and subsequently refused to provide vehicle registration or proof of insurance, Police Officer Doherty threw § 87(2)(b)'s learner permit through § 87(2)(b)'s driver door window, which landed on

his chest. § 87(2)(b) alleged that Police Officer Doherty turned to Police Officer Smyth and Police Officer Walsh, said, “I’m not dealing with this shit,” and walked away.

Police Officer Doherty corroborated that § 87(2)(b) provided him with a learner permit and refused to provide additional documents upon request. Police Officer Doherty stated that this interaction caused him to feel “defeated,” and he returned § 87(2)(b)’s learner permit to him by holding § 87(2)(b)’s learner permit and extending his hand towards § 87(2)(b)’s driver door window. § 87(2)(b) took the learner permit out of Police Officer Doherty’s hand. Police Officer Doherty then said something to the effect of, “I’m done. Have a good night.” Police Officer Doherty denied throwing § 87(2)(b)’s learner permit or using profanity.

Both Police Officer Smyth and Police Officer Walsh denied seeing Police Officer Doherty throw § 87(2)(b)’s learner permit during the incident or hearing Police Officer Doherty use profanity during the incident.

§ 87(2)(g)

It is therefore recommended that **Allegations B and C** be **unsubstantiated**.

Allegation D –Discourtesy: Police Officer John Smyth spoke discourteously to § 87(2)(b)

Allegation E –Abuse of Authority: Police Officer John Smyth threatened § 87(2)(b)
with the use of force.

Allegation F – Force: Police Officer John Smyth used physical force against § 87(2)(b)

As per § 87(2)(b) after Police Officer Smyth opened the front driver side door of § 87(2)(b)’s vehicle, he grabbed § 87(2)(b)’s left arm and pushed and pulled on it. § 87(2)(b) stated that he used his right hand to grip his steering wheel and pull his body and left arm away from Police Officer Smyth. Police Officer Smyth stated in response, “Reach, and I’ll lay you.” After Police Officer Smyth pulled on § 87(2)(b)’s left arm, he levered § 87(2)(b)’s left elbow against the chassis of § 87(2)(b)’s vehicle at the rear of his open front driver side door. § 87(2)(b) feared that his arm would break, so he exited his vehicle voluntarily.

SnagIt1.mp4 above depicts Police Officer Smyth standing at the front driver side door of § 87(2)(b)’s vehicle as a voice determined by the investigation to be his says, “Step off the fucking car,” and, “Reach and I’ll fucking lay you.”

Police Officer Smyth stated that after § 87(2)(b) refused to provide any documentation to him, he requested § 87(2)(b)’s name and place of residence. § 87(2)(b) refused to provide any identifying information, which Police Officer Smyth thought was “shady.” § 87(2)(b) made “furtive movements,” which consisted of moving his hands around his waist pockets and from right to left around his waistband, particularly around the seatbelt latch area to § 87(2)(b)’s right side. Due to light emanating only from streetlights and a store across the street, Police Officer Smyth could not visually determine what § 87(2)(b) was doing but thought that he might be tucking something into his pants, hiding something, or withdrawing something. § 87(2)(b) did not produce any items in his hands, and, due to lighting conditions, Police Officer Smyth was unsure of whether he saw anything, but § 87(2)(b)’s movements raised Police Officer Smyth’s feelings from “nervous” to “fearful.”

Police Officer Smyth instructed § 87(2)(b) to exit his vehicle, which he refused to do. Police Officer Smyth attempted to open the driver door of § 87(2)(b)’s vehicle using its exterior handle but it was locked. Police Officer Smyth reached his hand into the driver door window of

§ 87(2)(b)'s vehicle, which was open enough for him to reach inside. Police Officer Smyth took hold of the door lock toggle at the base of the window, unlocked the door, and opened the door using the interior handle. Police Officer Smyth again instructed § 87(2)(b) to exit the vehicle, which he refused to do. § 87(2)(b) continued to move his arms and reached an arm, Police Officer Smyth did not recall which, towards the center interior of the vehicle.

Because Police Officer Smyth did not know what § 87(2)(b) was reaching towards, Police Officer Smyth grabbed hold of this arm and said something to the effect of, "Move again and I'll hit you." § 87(2)(b) grabbed hold of the vehicle's steering wheel with his other arm. Police Officer Smyth pulled on one of § 87(2)(b)'s arms until he was able to pull § 87(2)(b) out of the vehicle.

Police Officer Doherty described the process of Police Officer Smyth removing § 87(2)(b) from his vehicle as Police Officer Smyth "cupping" his hands under § 87(2)(b)'s arm and "guiding" him out of the vehicle. Police Officer Walsh did not see the manner in which § 87(2)(b) exited his vehicle.

An officer is required to be courteous and respectful during public contact. NYPD Patrol Guide, Section 203-09 (Board Review 13). During a traffic stop, officers may exercise their discretion to require occupants to exit, without a particularized suspicion, out of a concern for safety. People v. Issac, 107 A.D.3d 1055 (2013) (Board Review 17). An officer must apply no more than the reasonable force necessary to gain control. NYPD Patrol Guide, Section 221-01 (Board Review 15).

§ 87(2)(g)

It is therefore recommended that **Allegation D** be **substantiated**.

§ 87(2)(g)

It is therefore recommended that **Allegation E** be **substantiated**.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation F** be **exonerated**.

Allegation G –Abuse of Authority: Police Officer John Smyth frisked § 87(2)(b)

It is undisputed that after removing § 87(2)(b) from his vehicle, Police Officer Smyth frisked him, § 87(2)(g). § 87(2)(b) alleged that once outside of his vehicle, Police Officer Smyth patted the exterior of § 87(2)(b)'s jacket and jeans and slid his hand into the top two inches of § 87(2)(b)'s boots.

Police Officer Smyth stated that after Police Officer Doherty ceased his interaction with § 87(2)(b) and Police Officer Smyth walked to the front driver side door of § 87(2)(b)'s vehicle, § 87(2)(b)'s refusal to identify himself or provide documentation for the vehicle caused him to feel “nervous.” This feeling escalated to “fearful” as a result of § 87(2)(b)'s movements, which consisted of moving his hands near his waist pockets and from right to left around his waistband, particularly around the seatbelt latch area to § 87(2)(b)'s right side. Police Officer Smyth stated that, due to poor lighting conditions, he was unable to determine what § 87(2)(b) was doing but thought that § 87(2)(b) might be tucking something into his pants, hiding something, or withdrawing something. Police Officer Smyth was unsure of whether he saw anything in the areas that § 87(2)(b) moved.

Police Officer Smyth did not observe any bulges in § 87(2)(b)'s clothing or anything which he believed to be a weapon after § 87(2)(b) exited his vehicle. In his memo book, Police Officer Smyth wrote that he performed a “frisk of furtive movement locations” (Board Review 16). Police Officer Smyth stated in his CCRB interview that he patted down the areas towards where § 87(2)(b) made “furtive movements.” § 87(2)(b)'s waistband, his front pants pockets, and possibly his rear pants pockets. Police Officer Smyth did not recall whether he patted the exterior of or reached his fingers into the rim of § 87(2)(b)'s boots.

Police Officer Smyth stated in Stop Report number § 87(2)(b) (Board Review 22) that the factors leading to the stop of § 87(2)(b) were the vehicle being parked next to a fire hydrant and § 87(2)(b) acting irate, refusing to provide documents, and making furtive movements. Police Officer Smyth entered the “Crime Suspected” as “Criminal Sale of Controlled Substance” and entered the “Basis For Frisk” as “Violent Crime, Other: DRUG SALES.” Police Officer Smyth stated to the CCRB that no elements of the specific incident led him to believe that any drug sales had taken or were going to take place. He entered the basis for frisk and crime suspected as he did because the area was known for drug sales and the Stop Report automated options are limited in scope.

The video footage in SnagIt3.mp4 above shows Police Officer Smyth patting § 87(2)(b)'s clothing starting at the waist and extending almost entirely to the ground.

An officer may frisk an individual if the officer reasonably suspects that the person is armed. Issac. During a vehicle stop, movements such as making hand motions to place objects and moving the body downwards are not, by themselves, suggestive of an individual being armed. After an individual is removed from a vehicle, without further evidence, the individual no longer poses an immediate threat to the safety of officers. People v. Chann, 221 A.D.2d 155 (1995) (Board Review 14). An officer may frisk a suspect after observing a totality of circumstances that result in a reasonable belief that he is armed. Issac.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation G** be substantiated.

Allegation H –Abuse of Authority: An officer stopped § 87(2)(b)

Allegation I –Abuse of Authority: An officer frisked § 87(2)(b)

Allegation J –Abuse of Authority: An officer searched § 87(2)(b)

§ 87(2)(g)

██████████ it is recommended that **Allegations H, I, and J** be closed as **victim uncooperative**.

Allegation K –Abuse of Authority: Police Officer Brian Doherty searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

It is undisputed that Police Officer Doherty entered § 87(2)(b)'s vehicle and searched the areas around the front driver and front passenger side seats.

§ 87(2)(b) stated that he inserted his hand into a pocket to withdraw his learner permit while speaking to Police Officer Doherty. § 87(2)(b) added in his telephone statement that he also reached into his pocket and withdrew his cell phone while speaking to Police Officer Doherty.

Police Officer Doherty stated that as he observed § 87(2)(b)'s vehicle from the unmarked vehicle, prior to approaching § 87(2)(b)'s vehicle for the first time, he observed § 87(2)(b) "dipping" his right shoulder towards the center of the vehicle. Later, during his interaction with § 87(2)(b) he requested § 87(2)(b)'s driver license multiple times. § 87(2)(b) reached into his pants and jacket pockets, and Police Officer Doherty instructed him not to do so. § 87(2)(b) in the process, removed and handed a learner permit to Police Officer Doherty. Police Officer Doherty observed a bulge in one of § 87(2)(b)'s pockets as he sat inside his vehicle, though he later observed § 87(2)(b) withdraw a cell phone from the location of the bulge.

Police Officer Doherty stated that he performed the search of § 87(2)(b)'s vehicle to observe the "lunge-able," "grab-able" areas of the vehicle's interior because of § 87(2)(b)'s movements while inside the vehicle, specifically lowering his shoulders prior to interacting with Police Officer Doherty and moving his hands towards the front driver side door interior, the gear shift area in the center of the vehicle, and the pockets of his pants and jacket during his

interaction with Police Officer Doherty. Police Officer Doherty did not look inside the vehicle for any other reason.

During a vehicle stop, a driver's motion to place an object in the backseat coupled with his motion prior to the vehicle stop of looking away and slumping down does not suggest that the person was armed and does not provide sufficient basis to search the vehicle. Chann. When a vehicle's occupants have been removed and patted down without incident, officers may generally not search the vehicle in the absence of probable cause. Officers must have more than reasonable suspicion of a weapon, and the movements of occupants searching for something alone will not justify a search. People v. Newman, 96 A.D.3d 34 (2012) (Board Review 19).

Police Officer Doherty approached § 87(2)(b)'s vehicle to investigate a vehicular violation, subsequently requesting documents confirming § 87(2)(b)'s identity and ownership of the vehicle. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegation K** be **substantiated**.

§ 87(2)(g), § 87(4-b)

Signature

Print

Date

Title/Signature

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